

Court No. - 32

Case :- WRIT - C No. - 5066 of 2020

Petitioner :- M/S Kuwars Techno Pet

Respondent :- Uttar Pradesh Power Corporation Limited And 2 Others

Counsel for Petitioner :- Ravindra Narayan Singh, Abu Bakht

Counsel for Respondent :- Abhishek Srivastava, Mahboob Ahmad

Hon'ble Shashi Kant Gupta, J.

Hon'ble Vipin Chandra Dixit, J.

This writ petition, inter alia, has been filed for the following reliefs:

"i. To, issue a writ, order or direction in the nature of certiorari quashing the impugned demand notice dated 11.1.2020 passed by the respondent no. 3 as contained in Ann. No.9 to the writ petition;

ii. To, issue a writ, order or direction in the nature of mandamus commanding the respondent No.3 to correct the erroneous and wrong bills and issue a fresh and correct bill to the petitioner as requested by the letters dated 25.3.2019, 8.7.2019, 1.11.2019 and 3.12.2019 as contained in Ann. No. 7 and 8 to the writ petition."

Heard learned counsel for the petitioner and Sri Mahboob Ahmad, learned counsel for the Electricity Department and perused the record.

The petitioner is raising dispute with regard to the correctness of the bill raised against him.

It is open to the petitioner to take recourse to the remedy provided to him under Clause 6.5 of the U.P. Electricity Supply code, 2005.

We are not inclined to entertain this writ petition for reasons that there is availability of statutory remedy.

In case, the petitioner approaches the appropriate authority/Executive Engineer for redressal of his grievance within two weeks from today, his application may be considered and decided by the said authority in accordance with law within four weeks from the date of receipt of a certified copy of this order by a speaking order after giving opportunity of hearing to the petitioner.

For a period of 6 weeks, impugned demand notice dated 11.1.2020 shall remain in abeyance provided the petitioner deposits Rs.5,00,000/- (Rupees five lacs) within two weeks from today.

With the aforesaid observation, the writ petition is finally disposed of.

Order Date :- 13.2.2020

P.P.